

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/14/26
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Jasmin Loza v. Rolando Sanchez***
Superior Court Case No. 24CECG00666

Hearing Date: September 15, 2026 (Dept. 501)

Motion: by Defendant Del Rey Community Service District for
Summary Judgment

Tentative Ruling:

To deny. (Code Civ. Proc., § 437c.)

Explanation:

Consideration of Evidence

Defendant Del Rey Community Service District ("DRCSD") objects to all of Plaintiffs' arguments and evidence suggesting that the incident was not intentional. On summary judgment, the moving defendant has the burden to negate only those theories of liability as alleged in the operative complaint. (*Conroy v. Regents of University of California* (2009) 45 Cal.4th 1244, 1254.) DRCSD argues the First Amended Complaint ("FAC") alleges only an intentional killing theory of liability; therefore, any argument or facts supporting a negligence claim should be disregarded. However, the FAC asserts three causes of action: a wrongful death action based on motor vehicle collision against defendant Rolando Sanchez ("Mr. Sanchez") only; a survival action based on motor vehicle collision against all defendants; and an intentional tort against all defendants. While there are allegations suggesting that Mr. Sanchez's actions were intentional, the FAC also specifically alleges "the acts of defendants were negligent. . ." (FAC, PLD-PI-001(1), Item MV-1.) "[A] party may plead in the alternative and may make inconsistent allegations. . ." (*Adams v. Paul* (1995) 11 Cal.4th 583, 593.) DRCSD has the burden on summary judgment to negate elements of all causes of actions pleaded, and thus, the evidence supporting a negligence theory of liability is considered.

Next, DRCSD relies upon *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1 ("D'Amico"), to object to the entirety of Mr. Sanchez's declaration, executed on June 19, 2026, on the ground that a party opposing summary judgment "cannot create an issue of fact by a declaration which contradicts his prior" sworn testimony. DRCSD states the *D'Amico* rule too broadly.

"In *D'Amico*, the California Supreme Court declared that '[w]here a plaintiff's admissions in a deposition contradict statements in the plaintiff's affidavits opposing the summary judgment, 'the rule of liberal construction loses its efficacy and the granting or denial of the motion for summary judgment depends upon the issues of credibility. Accordingly, when a defendant can establish his defense with the plaintiff's admissions sufficient to pass the strict construction test imposed on the moving party ... , the credibility of the admissions are valued so highly that the controverting affidavits may be

disregarded as irrelevant, inadmissible or evasive.” ’ [Citations.]” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1521, citations and italics omitted.)

“Properly applied, *D’Amico* is limited to instances where ‘credible [discovery] admissions ... [are] contradicted *only* by self-serving declarations of a party.’ [Citations.]” (*Scalf v. D. B. Log Homes, Inc.*, *supra*, 128 Cal.App.4th at p. 1521, italics in original.) “In a nutshell, the rule bars a party opposing summary judgment from filing a declaration that purports to impeach his or her own prior sworn testimony.” (*Id.*, at pp. 1522.)

The *D’Amico* rule is inapplicable here, simply because plaintiffs have not presented on their own self-serving declaration. Plaintiffs are relying upon a declaration made by a defendant, a party opponent, in this case. Although the facts asserted in Mr. Sanchez’s declaration contradicts those in his sworn testimony at his criminal trial, on summary judgment, the court may not weigh the evidence to determine which version is more likely true. Nor may a summary judgment be based on the court’s evaluation of credibility. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal. App. 4th 832, 840.) Therefore, DRCSD’s objection to the entirety of Mr. Sanchez’s declaration is overruled. DRCSD’s objections number 4-9 are similarly overruled. DRCSD’s evidentiary objection number 5 on the ground of hearsay is also overruled. The statement was not offered for the truth of the fact asserted, and rather it was made to explain why Mr. Sanchez drove to the water tank. The court does not rule on the remaining evidentiary objections, as they were immaterial to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Summary Judgment

DRCSD moves for summary judgment on the ground that Plaintiffs cannot establish that it was vicariously liable. DRCSD contends that Mr. Sanchez was not an employee of DRCSD, and even if he was, he was not acting in the scope of his duties as a board member and/or employee at the time of the incident.

On reply, DRCSD appears to withdraw its argument on Mr. Sanchez’s employee status, and instead argues that the critical issue is whether there is a triable issue of material fact as to whether Mr. Sanchez was acting within the scope of his duties as a board member of DRCSD. Accordingly, the discussion below is limited to this issue. To the extent that DRCSD argues that Government Code section 815.3 limits vicarious liability to acts that “arose from and w[ere] directly related to the elected official’s performance of his or her official duties[.]” the statute is strictly applied only to intentional torts, and as explained above, the FAC pleads both intentional and negligent theories of liabilities.¹

¹ It is also noted that even if the court were to exclude all of plaintiff’s evidence and only consider DRCSD’s evidence, i.e., that Mr. Sanchez intentionally struck decedent and he was not acting within the scope of his official duties, regardless of DRCSD’s liability, Government Code section 815.3 would require DRCSD to remain as a party to this action in the event plaintiff elects to seek a deficiency judgment against it. (Gov’t Code, § 815.3, subds. (a), (c) [“[i]f the trier of fact determines that the elected official’s act or omission did not arise from and was not directly related to the elected official’s performance of his or her official duties, upon a final judgment, . . . the plaintiff shall first seek recovery of the judgment against the assets of the elected official. If the court determines that the elected official’s assets are insufficient to satisfy the total judgment, . . . the court shall determine the amount of the deficiency and the plaintiff may seek to collect that remainder of the judgment from the public entity.”].)

“Whether a tort was committed within the scope of employment is ordinarily a question of fact; it becomes a question of law, however, where the undisputed facts would not support an inference that the employee was acting within the scope of his employment. [Citation.]” (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 447.) An employee’s willful, malicious and even criminal tort acts may fall within the scope of employment for the purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts. (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 209.) The requirement is that there is a causal nexus. (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 297-299.) Accordingly, for liability to attach to the employer, the tort must be a generally foreseeable consequence of the employee’s duties. (*Id.* at p. 299.)

“One traditional means of defining this foreseeability is seen in the distinction between minor ‘deviations’ and substantial ‘departures’ from the employer’s business. The former are deemed foreseeable and remain within the scope of employment; the latter are unforeseeable and take the employee outside the scope of his employment.” (*Moradi v. Marsh USA, Inc.* (2013) 219 Cal.App.4th 886, 901–902 (“*Moradi*”).)

“... ‘The question is often one of fact, and the rule now established is that only a substantial deviation or departure takes the employee outside the scope of his employment. If the main purpose of his activity is still the employer’s business, it does not cease to be within the scope of the employment by reason of incidental personal acts, slight delays, or deflections from the most direct route. The term “deviation” is ordinarily used to describe these minor deflections, and “departure” to describe the abandonment which takes the acts outside the scope of employment.’ ... More recently, the test was stated in this way: ‘In assessing whether an employee’s wrongful act was required by or incidental to his duties, the law defines occupational duties broadly. The fact that an employee is not engaged in the ultimate object of his employment at the time of his wrongful act does not preclude attribution of *902 liability to an employer.... For example, acts necessary to the comfort, convenience, health, and welfare of the employee while at work, though strictly personal to himself and not acts of service, do not take him outside the scope of his employment.’ ... ” (*Moradi, supra*, 219 Cal.App.4th at pp. 901–902.)

“However, under the ‘going and coming’ rule, employers are generally exempt from liability for tortious acts committed by employees while on their way to and from work because employees are said to be outside of the course and scope of employment during their daily commute. [Citations.] ” (*Lobo v. Tamco* (2014) 230 Cal.App.4th 438, 443.) Courts have recognized several exceptions to the “going and coming” rule.

“ ‘ “A well-known exception to the going-and-coming rule arises where the [employee’s] use of [his or her own] car gives some incidental benefit to the employer. Thus, the key inquiry is whether there is an *incidental benefit* derived by the employer....’ This exception to the going and coming rule ... has been referred to as the ‘required-vehicle’ exception.... The exception can apply if the use of a personally owned vehicle is either an express or implied condition of employment ..., or if the employee has agreed, expressly or implicitly, to make the vehicle available as an accommodation to the employer and the employer has ‘reasonably come to rely upon its use and [to] expect

the employee to make the vehicle available on a regular basis while still not requiring it as a condition of employment." ' [Citation.] " (*Moradi, supra*, 219 Cal.App.4th at p. 895, citations omitted.)

In *Moradi*, an employee of an insurance broker "left the office at the end of the workday and began driving in the direction of her home. She had decided that, on the way, she would stop for some frozen yogurt and take a yoga class." (*Moradi, supra*, 219 Cal.App.4th at p. 890.) On her way to the frozen yogurt shop, she collided with plaintiff motorcyclist. (*Ibid.*) The employee was required to drive to and from the office in her personal vehicle. (*Ibid.*) "On the day of the accident, the employee had used her vehicle to transport herself and some coemployees to an employer-sponsored program, and the employee had planned to use her vehicle the next day to drive to a prospective client's place of business." (*Id.*, at pp. 890-891.) The Second District Court of Appeal determined her planned stops to be a foreseeable minor deviation from her commute and that the employee was acting within the scope of her employment at the time of the accident under the "required vehicle" exception to the "going and coming" rule. (*Id.*, at p. 891.)

In the case at bench, the undisputed facts are as follows: decedent Jaime Carlos Loza was killed as a result of injuries sustained when he was struck by a 2011 black Chevrolet Tahoe operated by Mr. Sanchez on March 16, 2023. (SSMF Nos. 1, 3.) The vehicle belonged to Mr. Sanchez's wife. (SSMF No. 3.) Mr. Sanchez was found guilty of involuntary manslaughter for the killing of decedent Loza. (SSMF No. 14.) Mr. Sanchez was sworn in as a board member for DRCSD on December 17, 2020, and served as a member of its board of directors until December 6, 2024. (PSSMF No. 8.) DRCSD did not provide transportation to Mr. Sanchez. (PSSMF No. 42.) Members were required to secure their own means of transportation. (PSSMF No. 43.) Mr. Sanchez regularly drove his own personal vehicles to and from board meetings. (PSSMF No. 49.)

However, DRCSD and Plaintiffs each present evidence to suggest contradicting versions of events. According to DRCSD, Mr. Sanchez was at home immediately prior to the incident and struck the decedent on his way to purchase snacks. (UMF Nos. 4, 5.)

According to Plaintiffs, on the date of the incident, Mr. Sanchez reviewed materials in preparation for the board meeting at his home before driving to the DRCSD board meeting. (PSSMF No. 50.) Mr. Sanchez arrived at the board meeting at approximately 6:00 p.m.; however, the meeting time had changed to 7:00 p.m. due to daylight savings time, so he left. (PSSMF No. 51.) Mr. Sanchez left the board meeting site and drove to see one of DRCSD's large water tanks, because he had been informed that it had been leaking. He also went to see the adjacent recreational area that was being developed in preparation for the board meeting. (PSSMF No. 53.) Mr. Sanchez then drove back toward the board meeting, when he decided to purchase a drink and snack to eat at the board meeting. (PSSMF No. 54, 58.) Mr. Sanchez struck decedent on the way to purchase the drink and snack. (PSSMF No. 56.) Due to a mechanical defect in Mr. Sanchez's vehicle and the neuropathy in his feet, he was unable to control the vehicle and struck decedent Loza. (PSSMF No. 57.)

The evidence presented by Plaintiffs undoubtedly raises a triable issue of material fact as to whether Mr. Sanchez intentionally or negligently killed decedent Loza. Additionally, viewing the evidence most favorably to Plaintiffs, there is a triable issue of

